

=====

DOCUMENT 4: AI ACT - TRANSPARENCY REQUIREMENTS

Regulation (EU) 2024/1689 - Articles 50 and 52

Applicable from: August 2026

=====

Transparency obligations apply to AI systems that interact directly with people or generate synthetic content. These rules ensure people know when they are interacting with AI and when content is artificially generated.

=====

ARTICLE 50 - TRANSPARENCY OBLIGATIONS FOR CERTAIN AI SYSTEMS

=====

1. CHATBOTS AND AI INTERACTING WITH HUMANS

RULE:

Providers must ensure that AI systems intended to interact directly with natural persons are designed so that those persons are informed they are interacting with an AI system, unless this is obvious from the context.

WHO MUST DISCLOSE:

- The provider must build in the disclosure capability
- The deployer must activate and maintain the disclosure in operation

WHEN DISCLOSURE IS REQUIRED:

- Whenever a user interacts with a chatbot, virtual assistant, or any AI that communicates in natural language
- At the beginning of the interaction (not buried in terms and conditions)
- In a clear, comprehensible, and unambiguous manner

EXCEPTIONS:

- Where it is obvious from the context that the person is interacting with AI
- Where the AI is used for authorised law enforcement purposes

EXAMPLES:

- A customer service chatbot must say: "I am an AI assistant"
- A virtual health advisor must disclose it is AI-powered
- An AI lawyer assistant must clearly state it is not a human lawyer

2. EMOTION RECOGNITION AND BIOMETRIC CATEGORISATION

RULE:

Deployers using AI systems for emotion recognition or biometric categorisation must inform natural persons who are exposed to those systems.

DISCLOSURE MUST INCLUDE:

- That the system is being used
- What type of system it is (emotion recognition / biometric categorisation)
- Information must be provided at the time of exposure

EXCEPTIONS:

- Systems used for biometric categorisation or emotion recognition authorised by law for law enforcement purposes

EXAMPLES:

- HR software analysing facial expressions during a job interview must disclose this to candidates
- Retail software detecting customer emotions must inform people in-store

3. AI-GENERATED CONTENT (DEEPFAKES)

RULE:

Providers and deployers of AI systems that generate or manipulate image, audio, or video content constituting a deepfake must disclose that the content has been artificially generated or manipulated.

DEEPFAKE DEFINITION:

AI-generated or manipulated image, audio, or video content that resembles existing persons, objects, places, entities or events and would falsely appear to a person to be authentic or truthful.

DISCLOSURE REQUIREMENTS:

- The artificial origin of the content must be disclosed
- Disclosed in a machine-readable format
- Detectable and recognisable by automated tools
- Disclosure must be maintained even if content is shared or redistributed

EXCEPTIONS:

- Content that is part of an evidently artistic, creative, satirical, or fictional work (provided no misleading effect on public)
- Standard AI-assisted editing tools (colour correction, background removal) that do not materially change depicted persons

EXAMPLES:

- AI-generated video of a politician giving a speech must be labelled
- Synthetic voice recordings must be marked as AI-generated
- AI-generated images of real people must include watermarking

4. AI-GENERATED TEXT ON MATTERS OF PUBLIC INTEREST

RULE:

Deployers of AI systems that generate text on matters of public interest (news, policy, elections) and publish it for the public must disclose the content was AI-generated.

EXCEPTIONS:

- Where the AI system has been subject to a human review or editorial control and a natural person takes responsibility for the content

=====

ARTICLE 52 - TRANSPARENCY OBLIGATIONS (ADDITIONAL)

=====

SYNTHETIC CONTENT LABELLING (Technical requirements):

- Providers of AI systems generating synthetic audio, image, video, or text must ensure outputs are marked in a machine-readable format
- Must use technical solutions (watermarking, metadata embedding) that are robust, interoperable, and tamper-evident where technically feasible

PROVIDERS' OBLIGATIONS:

- Must implement technical measures to mark AI-generated content
- Must ensure the marking persists when the content is shared
- Must make the technical specification of the marking publicly available

CODES OF PRACTICE:

- The European AI Office will facilitate voluntary codes of practice for content authenticity and provenance
- =====

SUMMARY TABLE - TRANSPARENCY OBLIGATIONS

Situation	Who Discloses	Timing	Article
Chatbot interaction	Provider/ Deployer	At start of interaction	Art. 50
Emotion recognition in use	Deployer	At time of use	Art. 50
Biometric categorisation	Deployer	At time of use	Art. 50
Deepfake image/video/audio	Provider/ Deployer	In content itself	Art. 50
AI-generated public text	Deployer	When published	Art. 50
Synthetic content marking	Provider	In metadata	Art. 52

=====

PENALTIES FOR VIOLATION:

Failure to comply with transparency obligations is subject to fines of up to EUR 15 million or 3% of global annual turnover (Article 99).

=====

Source: Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024. OJ L, 2024/1689, 12.7.2024.

ELI: <http://data.europa.eu/eli/reg/2024/1689/oj>

=====